

OFFICE OF THE SECRETARY

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Sacramento, CA 94283-0001



June 8, 2021

The Honorable Arthur H. Mann
Judge of the Superior Court
County of Lake
255 North Forbes Street
Lakeport, CA 95453

Re: David Lawrence Faulkenberry
CDCR No: T11384
Case No: CR4931
Date of Sentence: March 9, 2001

Dear Honorable Arthur H. Mann:

The purpose of this letter is to provide the court with the authority to resentence inmate David L. Faulkenberry, T11384, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Faulkenberry has received one Rules Violation Report since being received to CDCR on March 16, 2001, but has remained disciplinary free since January of 2008. Inmate Faulkenberry is currently assigned as a Porter, and his supervisor notes that he has continued to show great communication skills with staff and his peers. Inmate Faulkenberry also participates in the Military Veteran's Support Group. Inmate Faulkenberry has received numerous certificates and 22 laudatory chronos from group sponsors, acknowledging his commitment and dedication to these self-awareness and improvement groups.

The Honorable Arthur H. Mann
Page 2

Having reviewed the enclosed documentation it appears that inmate Faulkenberry's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Michael S. Lunas, Presiding Judge
Lake County District Attorney's Office
Lake County Public Defender's Office
